

LAND TITLES
ACCESS CANBERRA
Chief Minister, Treasury and
Economic Development Directorate

Sheet No. 1 of 26

SITE PLAN

LAND DETAILS

Block
4

Section
75

Division
DENMAN PROSPECT

Deposited Plan Number
DP 11618

Volume/Folio
2384:16

Class of Units (A or B)
A

Rebecca Anne McMillan
sole director / secretary

Executed by JTRZ Pty Ltd
ACN 618 153 067
in accordance with Section 127 of the Corporations Act 2001

Ryan Andrew Cappell
sole director

Executed by Cappell Development
No 6 Pty Ltd ACN 609 763 153
in accordance with Section 127 of the Corporations Act 2001

Signature of Lessee

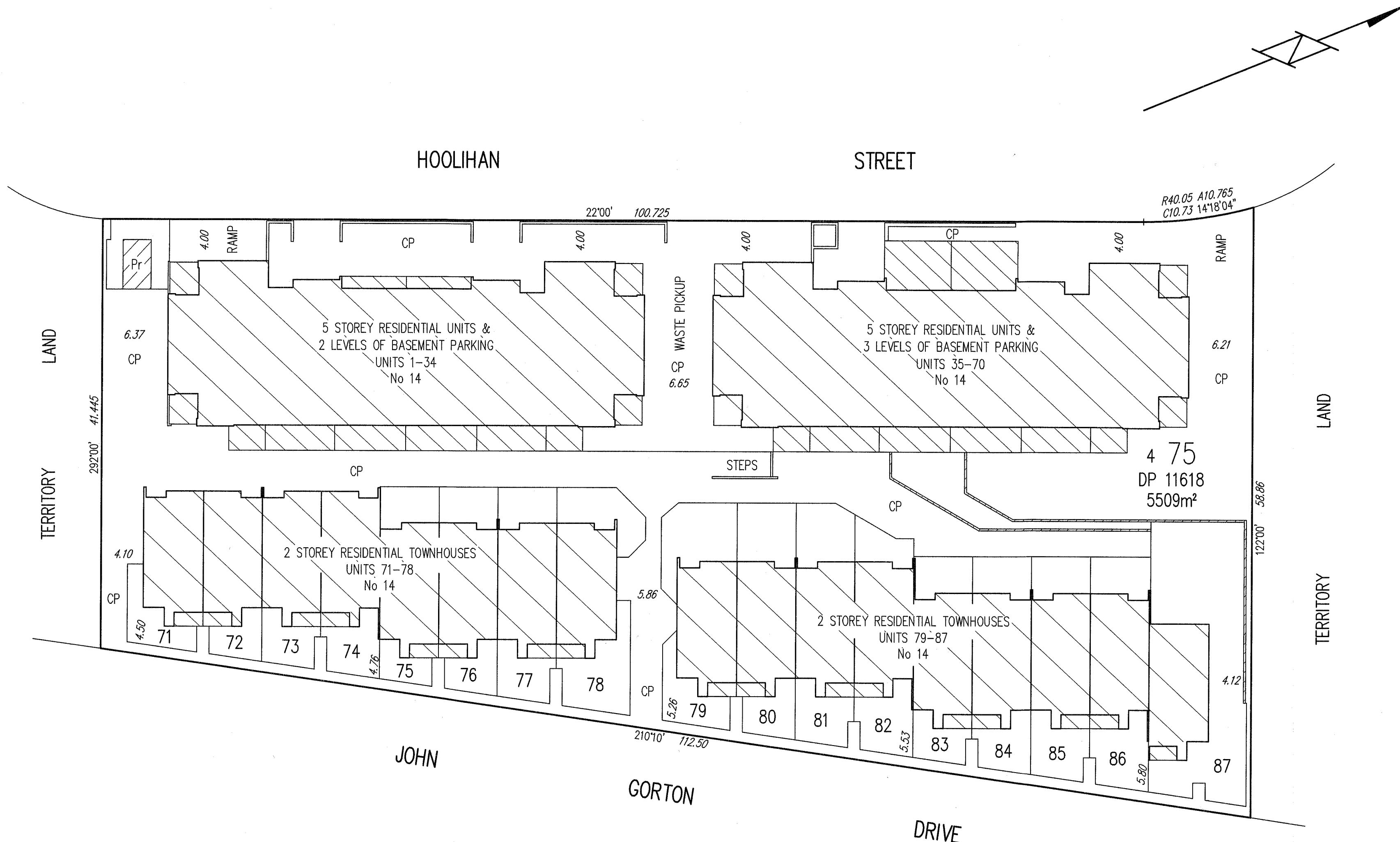
Lyn Tankey

Delegate of the
ACT Planning and Land Authority
25 November 2020
APPROVED UNDER THE UNIT TITLES ACT 2001,
AS THE UNITS PLAN FOR THE SUBDIVISION
OF THE ABOVE MENTIONED PARCEL OF LAND

David Pryce
Registrar-General

01/12/2020

UNITS PLAN No.
13195



Form 1

Form 088 - SP

5 0 5 10 15

Graphic bar scale - SCALE 1: 300

Units and Subsidiaries are subject to the provisions of Section 34 of the Unit Titles Act 2001, where applicable.

SURVEYORS DECLARATION

1. ROBERT RICHARDS of M. & M SURVEYS
admin@mmsurveys.com.au
1/68 DACRE STREET, MITCHELL ACT 2911

A surveyor registered under the Surveyors Act 2007, herby certify that:

1. The survey represented by the diagrams on forms 1 and 3 of this plan are accurate and was completed on (insert date) - 27.10.2020

2. The survey is in accordance with the following Acts:
• Unit Titles Act 2001;
• Land Titles (Unit Titles) Act 1970;
• Land Titles Act 1925; and,
• any other Regulation made under those Acts
and in accordance with the Surveyors Practice Directions.

Signature of Registered Surveyor

27 OCTOBER 2020

Dated

CROSS OUT EITHER OF ITEM 3 OR 3(a)-3(c), WHICHEVER DOES NOT APPLY — 3(a)-(c) CANNOT APPLY IF AN ENCROACHMENT OCCURS OVER A ROAD OR PUBLIC PLACE UNLESS THE ENCROACHMENT IS AN ATTACHMENT AS DEFINED BY THE UNIT TITLES ACT 2001.

3. Each building (including anything attached to it) or building in the course of erection on the parcel is wholly within the parcel.

OR

3 (a), (b), (c)

a) All units and unit subsidiaries shown in the diagrams are wholly within the parcel;
b) The diagram clearly indicates the existence, nature and extent of any encroachment by a building (including anything attached to it), beyond the boundaries of the parcel; and,
c) The diagrams clearly indicate the existence, nature and extent of any easement granted and registered, or to be granted and registered upon registration of this proposed plan, pertaining to the parcel.

1ST FLOOR, 182-200 CITY WALK,
CANBERRA CITY, ACT 2601

Address for Service of Notice

L J HOOKER STRATA ACT

Name of Manager / Owners Corporation

XVP22142

SUE

Form 078

**SCHEDULE OF UNIT ENTITLEMENTS****1. LAND**

District/Division	Section	Block
DENMAN PROSPECT	75	4

Unit Plan No
13195

2. APPROVAL UNDER UNIT TITLES ACT 2001

COLUMN 1			COLUMN 2	
UNIT NO	UNIT ENTITLEMENT	UNIT SUBSIDIARIES	VOLUME	FOLIO
1	82	3	3002	988
2	139	5	3002	989
3	139	5	3002	990
4	82	3	3002	991
5	111	4	3002	992
6	82	3	3002	993
7	82	3	3002	994
8	111	4	3002	995
9	82	3	3002	996
10	139	5	3002	997
11	139	5	3002	998
12	82	3	3002	999
13	111	4	3003	1
14	82	3	3003	2
15	82	3	3003	3
16	111	4	3003	4
17	82	3	3003	5
18	139	6	3003	6
19	139	4	3003	7
20	82	3	3003	8
21	111	4	3003	9
22	82	3	3003	10
23	82	3	3003	11
24	111	4	3003	12
25	82	3	3003	13

Aggregate

93

The Certificate of Title issued for each of the units into which the parcel of land has been subdivided is as shown in Column 2 above. The Certificate of Title for the common property is:

Volume

Folio

3002

987

Rebecca Anne McMillan
Sole Director / Secretary
ACN 604 983 153
Cappello Developments
No. 6 Pty Ltd

Ryan Andrew Cappello
Signature of Lessee

Column 1 above is the schedule of unit entitlement approved for the subdivision.

Dated Twenty fifth this day of November 2020

Vivian Lyn Tankey
Delegate of the Authority/Executive

David Pryce
Registrar-General



Deputy Registrar-General

SUE

Form 078

**SCHEDULE OF UNIT ENTITLEMENTS****1. LAND**

District/Division	Section	Block
DENMAN PROSPECT	75	4

Unit Plan No
13195

2. APPROVAL UNDER UNIT TITLES ACT 2001

COLUMN 1			COLUMN 2	
UNIT NO	UNIT ENTITLEMENT	UNIT SUBSIDIARIES	VOLUME	FOLIO
26	139	5	3003	14
27	139	5	3003	15
28	82	3	3003	16
29	111	4	3003	17
30	82	3	3003	18
31	149	4	3003	19
32	82	3	3003	20
33	111	4	3003	21
34	82	3	3003	22
35	82	3	3003	23
36	111	3	3003	24
37	82	3	3003	25
38	139	4	3003	26
39	139	5	3003	27
40	82	3	3003	28
41	111	3	3003	29
42	82	3	3003	30
43	82	3	3003	31
44	111	4	3003	32
45	82	3	3003	33
46	139	4	3003	34
47	139	5	3003	35
48	82	3	3003	36
49	111	4	3003	37
50	82	3	3003	38

Aggregate

90

The Certificate of Title issued for each of the units into which the parcel of land has been subdivided is as shown in Column 2 above. The Certificate of Title for the common property is:

Volume

Folio

3002

987

Rebecca Anne McMillan
sole director/secretary
TJR2 Pty Ltd
ACN 618 153 067

R. C. Cappello
sole Director
Ryan Cappello
Cappello
developments No 6 Pty Ltd
ACN 609 763

Signature of Lessee

Column 1 above is the schedule of unit entitlement approved for the subdivision.

Dated Twenty fifth this day of November 2020

V. Lyn Tankey

Delegate of the Authority/Executive

David Pryce
Registrar-General



Deputy Registrar-General

**SUE**

Form 078

SCHEDULE OF UNIT ENTITLEMENTS**1. LAND**

District/Division	Section	Block
DENMAN PROSPECT	75	4

Unit Plan No
13195

2. APPROVAL UNDER UNIT TITLES ACT 2001

COLUMN 1			COLUMN 2	
UNIT NO	UNIT ENTITLEMENT	UNIT SUBSIDIARIES	VOLUME	FOLIO
51	82	3	3003	39
52	111	5	3003	40
53	82	3	3003	41
54	139	5	3003	42
55	139	5	3003	43
56	82	3	3003	44
57	111	4	3003	45
58	82	3	3003	46
59	82	3	3003	47
60	111	5	3003	48
61	82	3	3003	49
62	139	5	3003	50
63	139	5	3003	51
64	82	3	3003	52
65	111	4	3003	53
66	82	3	3003	54
67	149	4	3003	55
68	82	3	3003	56
69	111	5	3003	57
70	82	3	3003	58
71	160	7	3003	59
72	160	6	3003	60
73	160	5	3003	61
74	160	5	3003	62
75	160	6	3003	63

Aggregate

106

The Certificate of Title issued for each of the units into which the parcel of land has been subdivided is as shown in Column 2 above. The Certificate of Title for the common property is:

Volume

Folio

3002

987

Rebecca Anne McMillan
Sole Director/Secretary
TOR 2 Pty Ltd
ACN 618 153 067

R. C. Ryan
Sole Director
Cappello Developments
No. 6 Pty Ltd
ACN 609 763 153
Signature of Lessee

Column 1 above is the schedule of unit entitlement approved for the subdivision.

Dated Twenty fifth this day of November 2020

Lyn Tankey
Delegated Authority/Executive

David Pryce
Registrar-General



Deputy Registrar-General



Form 078

1. LAND

Unit Plan No
13195

2. APPROVAL UNDER UNIT TITLES ACT 2001

Aggregate	10000	370	The Certificate of Title issued for each of the units into which the parcel of land has been subdivided is as shown in Column 2 above. The Certificate of Title for the common property is:				
TRR2 Pty Ltd Rebecca Anne Memilian sole Director / secretary TRR2 Pty Ltd ACN 618 153 067		RC Ryan Andrew Cappello sole Director cappello developments No 6 Pty Ltd ACN 609 763 153					
Signature of Lessee			<table><tr><th>Volume</th><th>Folio</th></tr><tr><td>3002</td><td>987</td></tr></table>	Volume	Folio	3002	987
Volume	Folio						
3002	987						

V. Vance Lyn Tankey

Volume	Folio
3002	987

Deputy Registrar-General

FLOOR PLAN

Block

4

Section

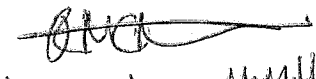
75

Division

DENMAN PROSPECT

FLOOR NUMBER

SUBSIDIARY INDEX
UNITS 1-70


Rebecca Anne McMahon
sole Director/secretary

Executed by TCRZ Pty Ltd

ACN 615153067

in accordance with Section 127 of the Corporations Act 2001

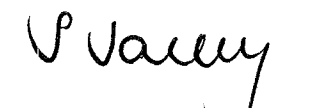

Ryan Andrew Cappello
sole Director

Executed by Cappello Development

No 6 Pty Ltd ACN 609763153

in accordance with Section 127 of the Corporations Act 2001

Signature of Lessee


Lyn Tackey
Delegate of the
ACT Planning and Land Authority

APPROVED UNDER THE UNIT TITLES ACT 2001,
AS THE UNITS PLAN FOR THE SUBDIVISION
OF THE ABOVE MENTIONED PARCEL OF LAND

UNITS PLAN No.

13195

UNIT IDENTIFIER				SUBSIDIARIES						SUBSIDIARY TOTAL
UNIT No	SHEET No	FLOOR	ADDRESS	CARSPACE		STORE		BALCONY		
				SUB N'	SH N'	SUB N'	SHEET N'	SUB N'	SHEET N'	
1	10	SECOND	14 HOOLIHAN STREET	1	9	2	9	3	10	3
2	10	SECOND	14 HOOLIHAN STREET	1,2	9	3	9	4,5	10	5
3	10	SECOND	14 HOOLIHAN STREET	1,2	9	3	9	4,5	10	5
4	10	SECOND	14 HOOLIHAN STREET	1	9	2	9	3	10	3
5	10	SECOND	14 HOOLIHAN STREET	1,2	9	3	9	4	10	4
6	10	SECOND	14 HOOLIHAN STREET	1	9	2	9	3	10	3
7	11	THIRD	14 HOOLIHAN STREET	1	9	2	9	3	11	3
8	11	THIRD	14 HOOLIHAN STREET	1	9	2	9	3,4	11	4
9	11	THIRD	14 HOOLIHAN STREET	1	9	2	9	3	11	3
10	11	THIRD	14 HOOLIHAN STREET	1,2	9	3	9	4,5	11	5
11	11	THIRD	14 HOOLIHAN STREET	1,2	9	3	9	4,5	11	5
12	11	THIRD	14 HOOLIHAN STREET	1	9	2	9	3	11	3
13	11	THIRD	14 HOOLIHAN STREET	1	9	2	9	3,4	11	4
14	11	THIRD	14 HOOLIHAN STREET	1	9	2	9	3	11	3
15	12	FOURTH	14 HOOLIHAN STREET	1	9	2	9	3	12	3
16	12	FOURTH	14 HOOLIHAN STREET	1	9	2	9	3,4	12	4
17	12	FOURTH	14 HOOLIHAN STREET	1	9	2	9	3	12	3
18	12	FOURTH	14 HOOLIHAN STREET	1,2	9	3,4	9	5,6	12	6
19	12	FOURTH	14 HOOLIHAN STREET	1	9	2	9	3,4	12	4
20	12	FOURTH	14 HOOLIHAN STREET	1	9	2	9	3	12	3
21	12	FOURTH	14 HOOLIHAN STREET	1	9	2	9	3,4	12	4
22	12	FOURTH	14 HOOLIHAN STREET	1	9	2	9	3	12	3
23	13	FIFTH	14 HOOLIHAN STREET	1	9	2	9	3	13	3
24	13	FIFTH	14 HOOLIHAN STREET	1	9	2	9	3,4	13	4
25	13	FIFTH	14 HOOLIHAN STREET	1	9	2	9	3	13	3
26	13	FIFTH	14 HOOLIHAN STREET	1,2	9	3	9	4,5	13	5
27	13	FIFTH	14 HOOLIHAN STREET	1,2	9	3	9	4,5	13	5
28	13	FIFTH	14 HOOLIHAN STREET	1	9	2	9	3	13	3
29	13	FIFTH	14 HOOLIHAN STREET	1	9	2	9	3,4	13	4
30	13	FIFTH	14 HOOLIHAN STREET	1	9	2	9	3	13	3
31	14	SIXTH	14 HOOLIHAN STREET	1,2	9	3	9	4	14	4
32	14	SIXTH	14 HOOLIHAN STREET	1	9	2	9	3	14	3
33	14	SIXTH	14 HOOLIHAN STREET	1	9	2	9	3,4	14	4
34	14	SIXTH	14 HOOLIHAN STREET	1	9	2	9	3	14	3
35	11	THIRD	14 HOOLIHAN STREET	1	8	2	8	3	11	3

44

36

50

130

UNIT IDENTIFIER				SUBSIDIARIES						SUBSIDIARY TOTAL
UNIT No	SHEET No	FLOOR	ADDRESS	CARSPACE		STORE		BALCONY		
				SUB N°	SHEET N°	SUB N°	SHEET N°	SUB N°	SHEET N°	
36	11	THIRD	14 HOOLIHAN STREET	1	8	2	8	3	11	3
37	11	THIRD	14 HOOLIHAN STREET	1	8	2	8	3	11	3
38	11	THIRD	14 HOOLIHAN STREET	1	9	2	9	3*,4	11	4
39	11	THIRD	14 HOOLIHAN STREET	1,2	9	3	9	4*,5	11	5
40	11	THIRD	14 HOOLIHAN STREET	1	8	2	8	3	11	3
41	11	THIRD	14 HOOLIHAN STREET	1	8	2	8	3	11	3
42	11	THIRD	14 HOOLIHAN STREET	1	8	2	8	3	11	3
43	12	FOURTH	14 HOOLIHAN STREET	1	8	2	8	3	12	3
44	12	FOURTH	14 HOOLIHAN STREET	1	8	2	8	3,4	12	4
45	12	FOURTH	14 HOOLIHAN STREET	1	8	2	8	3	12	3
46	12	FOURTH	14 HOOLIHAN STREET	1	8	2	8	3,4	12	4
47	12	FOURTH	14 HOOLIHAN STREET	1,2	10	3	10	4,5	12	5
48	12	FOURTH	14 HOOLIHAN STREET	1	8	2	8	3	12	3
49	12	FOURTH	14 HOOLIHAN STREET	1	8	2	8	3,4	12	4
50	12	FOURTH	14 HOOLIHAN STREET	1	8	2	8	3	12	3
51	13	FIFTH	14 HOOLIHAN STREET	1	8	2	8	3	13	3
52	13	FIFTH	14 HOOLIHAN STREET	1,2	8	3,6	8	4,5	13	6
53	13	FIFTH	14 HOOLIHAN STREET	1	8	2	8	3	13	3
54	13	FIFTH	14 HOOLIHAN STREET	1,2	8,9	3	8	4,5	13	5
55	13	FIFTH	14 HOOLIHAN STREET	1,2	9	3	9	4,5	13	5
56	13	FIFTH	14 HOOLIHAN STREET	1	8	2	8	3	13	3
57	13	FIFTH	14 HOOLIHAN STREET	1	8	2	8	3,4	13	4
58	13	FIFTH	14 HOOLIHAN STREET	1	8	2	8	3	13	3
59	14	SIXTH	14 HOOLIHAN STREET	1	8	2	8	3	14	3
60	14	SIXTH	14 HOOLIHAN STREET	1,2	8	3	8	4,5	14	5
61	14	SIXTH	14 HOOLIHAN STREET	1	10	2	10	3	14	3
62	14	SIXTH	14 HOOLIHAN STREET	1,2	9	3	9	4,5	14	5
63	14	SIXTH	14 HOOLIHAN STREET	1,2	10	3	10	4,5	14	5
64	14	SIXTH	14 HOOLIHAN STREET	1	10	2	10	3	14	3
65	14	SIXTH	14 HOOLIHAN STREET	1	10	2	10	3,4	14	4
66	14	SIXTH	14 HOOLIHAN STREET	1	10	2	10	3	14	3
67	15	SEVENTH	14 HOOLIHAN STREET	1,2	9	3	9	4	15	4
68	15	SEVENTH	14 HOOLIHAN STREET	1	10	2	10	3	15	3
69	15	SEVENTH	14 HOOLIHAN STREET	1,2	8	3	8	4,5	15	5
70	15	SEVENTH	14 HOOLIHAN STREET	1	10	2	10	3	15	3

45

36

50

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S38(3)* IS COURTYARD BUT SHOWN AS BALCONY ON PLANS
S39(4)* IS COURTYARD BUT SHOWN AS BALCONY ON PLANS

LEGEND

B DENOTES BALCONY
CP DENOTES COMMON PROPERTY
Cs DENOTES CAR SPACE
Cy DENOTES COURTYARD
D DENOTES EXIT DOOR
E DENOTES ELECTRICS
F DENOTES SUBSIDIARY BOUNDARY IS FACE OF COLUMN/WALL
Fh DENOTES FIRE HYDRANT
G DENOTES GARDEN
K DENOTES SUBSIDIARY BOUNDARY IS CORNER OF WALL
Me DENOTES METAL BAR FENCE
Pr DENOTES PUMP ROOM
S DENOTES STAIRS-INTERNAL
St DENOTES STORAGE SUBSIDIARY
■ DENOTES CONCRETE COLUMN
---- DENOTES BUILDING LINE BELOW
= DENOTES BRICK COURTYARD/GARDEN WALL

NOTES

UNITS AND SUBSIDIARIES ARE SUBJECT TO THE PROVISIONS OF SECTION 34 OF THE UNIT TITLES ACT 2001, WHERE APPLICABLE.

UNIT BOUNDARIES & AREAS HAVE BEEN DETERMINED WITH REFERENCE TO THE CENTRELINE OF EXTERNAL WALLS & INTERNAL COMMON WALLS, UNLESS NOTED OTHERWISE.

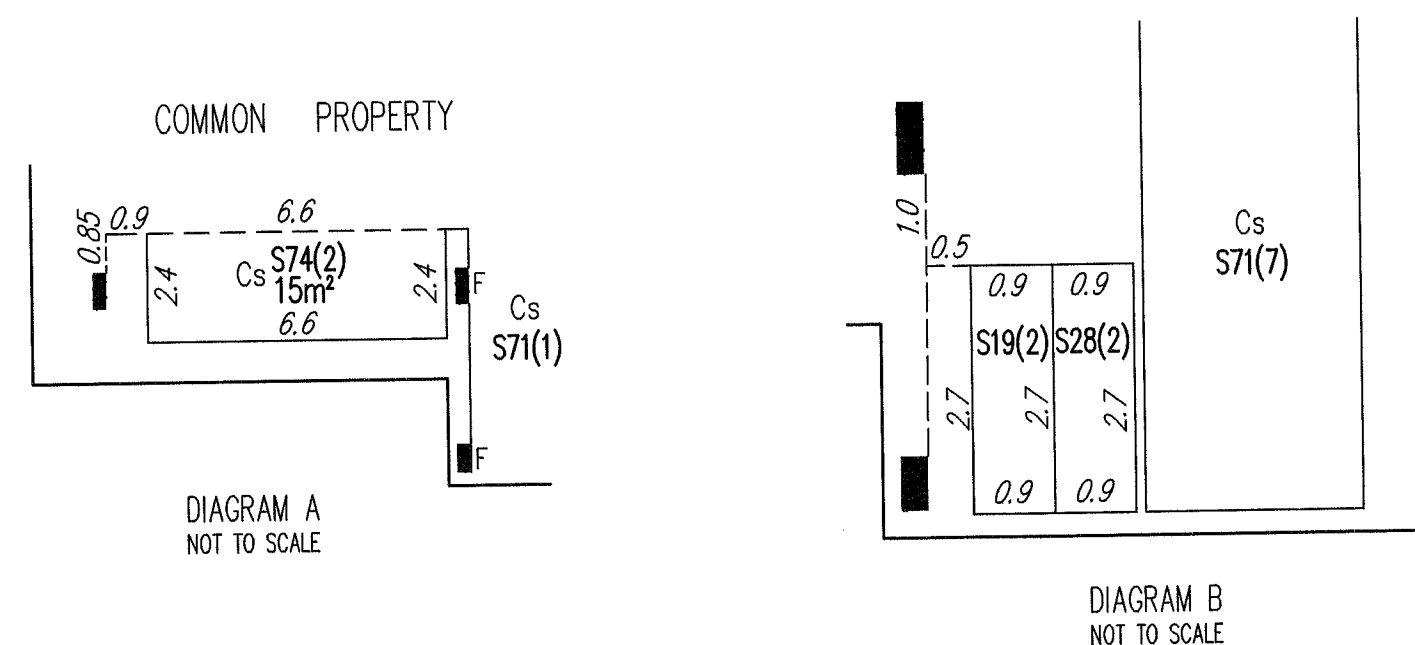
COURTYARD BOUNDARIES & AREAS HAVE BEEN DETERMINED BY THE OUTER FACE OF BRICK WALLS, THE CENTRELINE OF COMMON BRICK WALLS & METAL BAR FENCING, UNLESS STATED OTHERWISE

CARSPACES HAVE BEEN DETERMINED BY PAINTED LINES ON CONCRETE SLABS. CAR SPACES ARE 5.4 LONG BY 2.4 WIDE WITH AN AREA OF 12m², UNLESS STATED OTHERWISE

STORAGE ROOMS HAVE BEEN DETERMINED BY METAL SHEETING WALLS & ROOF. STORAGE ROOMS ARE 2.4 BY 0.8 WITH AN AREA OF 1m² UNLESS STATED OTHERWISE

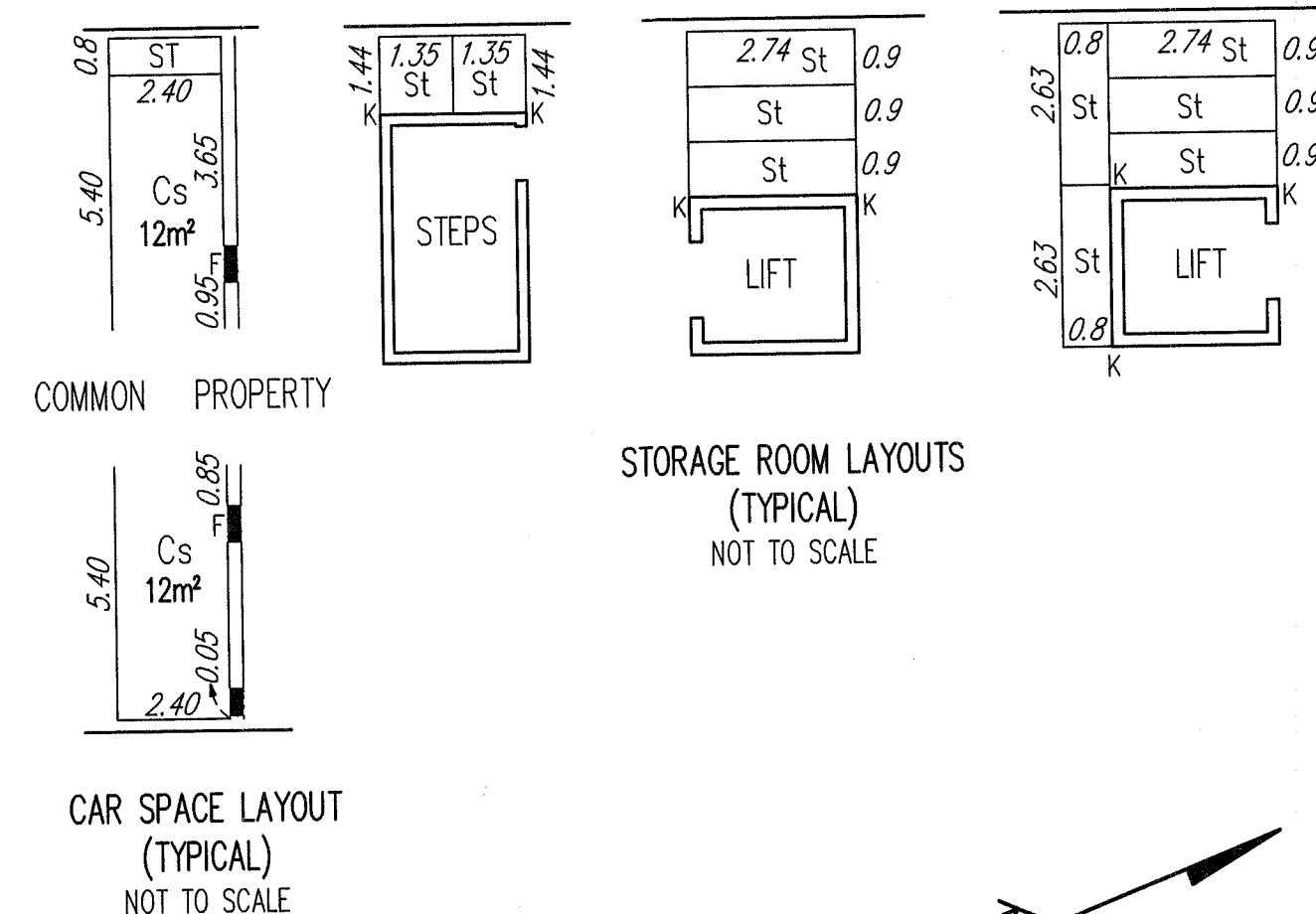
ENTRY, RAMP, STEPS, FIRE HYDRANTS & METERS ARE COMMON PROPERTY

ALL AREAS ARE APPROXIMATE & MAY CONTAIN COLUMNS & SERVICE DUCTS, WHICH ARE COMMON PROPERTY



UNIT IDENTIFIER				SUBSIDIARIES								SUBSIDIARY TOTAL
UNIT No	SHEET No	FLOOR	ADDRESS	CARSPACE		STORE		COURTYARD		BALCONY		
				SUB N°	SH N°	SUB N°	SHEET N°	SUB N°	SHEET N°	SUB N°	SHEET N°	
71	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2,7	8,9	3,4	8	5	8	6	9	7
72	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2	8	3,4	8	5	8	6	9	6
73	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2	8	3	8	4	8	5	9	5
74	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2	8	3	8	4	8	5	9	5
75	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2	8	3	8	4,5	8	6	9	6
76	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2	8	3,4	8	5,6	8	7	9	7
77	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2	8	3	8	4,5	8	6	9	6
78	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2	8	3,4	8	5,6	8	7	9	7
79	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2,7	8,9	3	8	4,5	8	6	9	7
80	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2,8	8,9	3,4	8	5,6	8	7	9	8
81	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2,3	8	4,5	8	6,7	8	8	9	8
82	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2	8	3,4	8	5,6	8	7	9	7
83	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2	8	3	8	4,5	8	6	9	6
84	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2	8	3	8	4,5	8	6	9	6
85	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2	8	3	8	4,5	8	6	9	6
86	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2	8	3	8	4,5	8	6	9	6
87	8,9	GRD,1ST	14 HOOLIHAN STREET	1,2,3	8	4,5	8	6	8	7	9	7
TOTALS				39		24		29		17		109

DIAGRAMS OF CAR SPACES & STORAGE ROOMS



LAND TITLES

ACCESS CANBERRA
Chief Minister, Treasury and
Economic Development Directorate

Sheet No.7..... of26.....

FLOOR PLAN

Block

4

Section

75

Division

DENMAN PROSPECT

FLOOR NUMBER

LEGEND, NOTES
SUBSIDIARY INDEX
UNITS 71-87

Rebecca Anne McMillan
sole director/secretary
Executed by
TOP 2 Pty Ltd ACN 613 153 067
in accordance with Section 127 of the Corporations Act 2001

Ryan Andrew Cappello
sole director/secretary
Executed by
Cappello Development Pty Ltd ACN 617 763 153
in accordance with Section 127 of the Corporations Act 2001

Signature of Lessee

Lyn Tanker
Delegate of the
ACT Planning and Land Authority

APPROVED UNDER THE UNIT TITLES ACT 2001,
AS THE UNITS PLAN FOR THE SUBDIVISION
OF THE ABOVE MENTIONED PARCEL OF LAND

UNITS PLAN No.

13195

FLOOR PLAN

Block

4

Section

75

Division

DENMAN PROSPECT

FLOOR NUMBER

GROUND

Executed by
Rebecca Anna McMillan
sole director/secretary
TOR 2 Pty Ltd
ACN 618 153 067
in accordance with Section 127 of the Corporations Act 2001

Executed by
Ryan Andrew Cappello
sole director
Cappello Developments
No 6 Pty Ltd ACN 609 763 183
in accordance with Section 127 of the Corporations Act 2001

Signature of Lessee

Lyn Tanney
Lyn Tanney

Delegate of the
ACT Planning and Land Authority

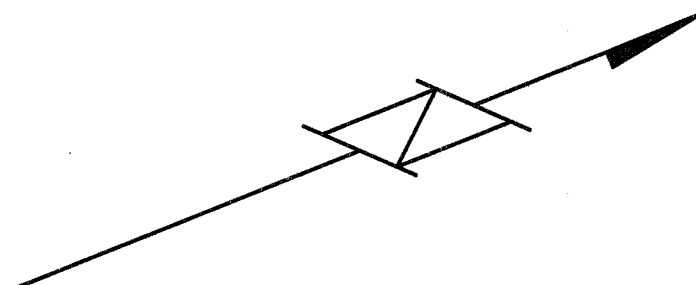
APPROVED UNDER THE UNIT TITLES ACT 2001,
AS THE UNITS PLAN FOR THE SUBDIVISION
OF THE ABOVE MENTIONED PARCEL OF LAND

UNITS PLAN No.

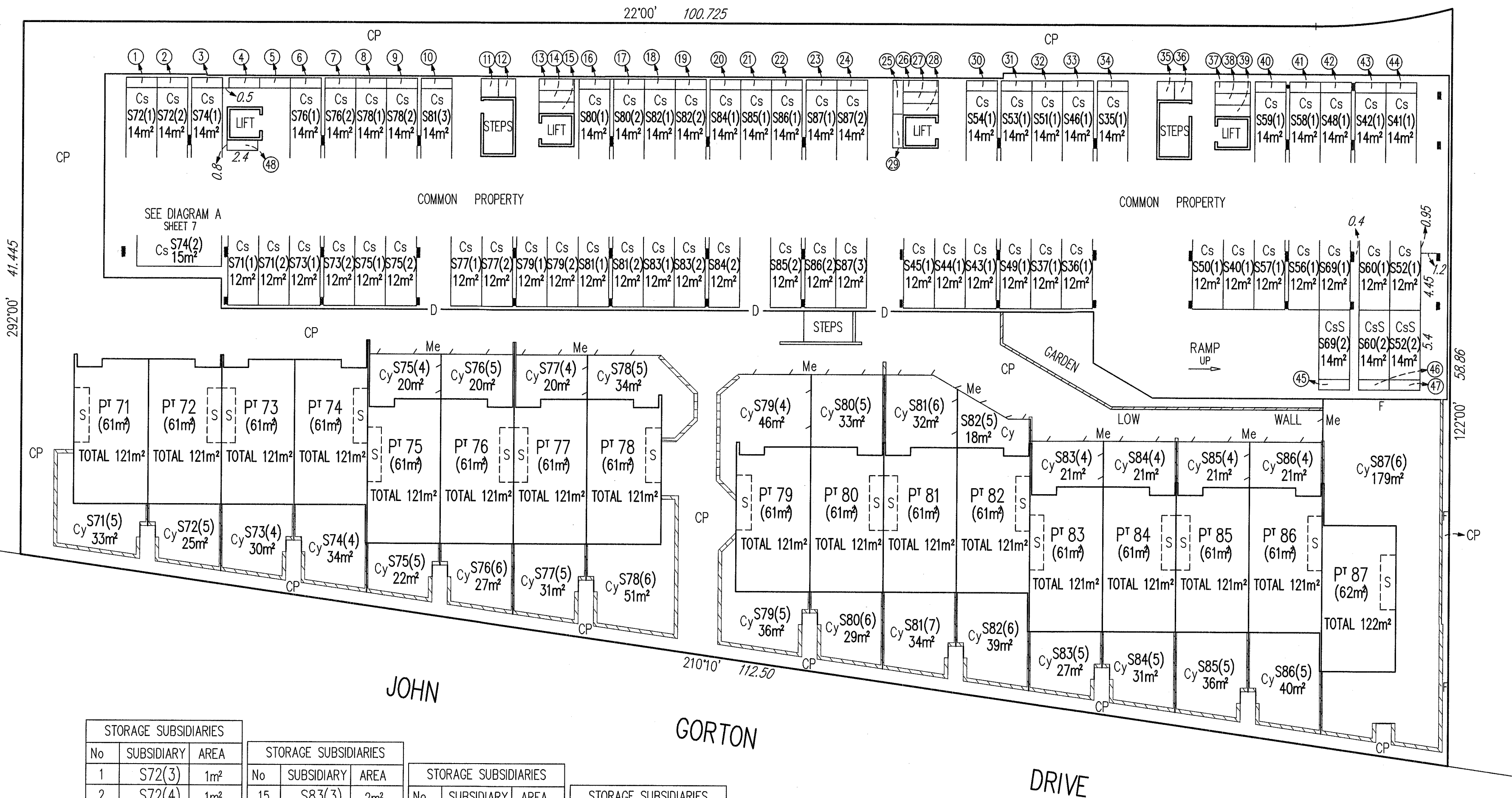
13195

HOOLIHAN

STREET



22'00" 100.725

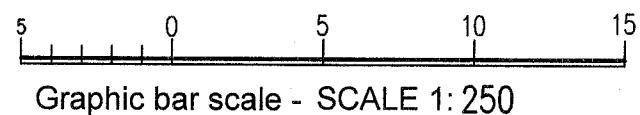


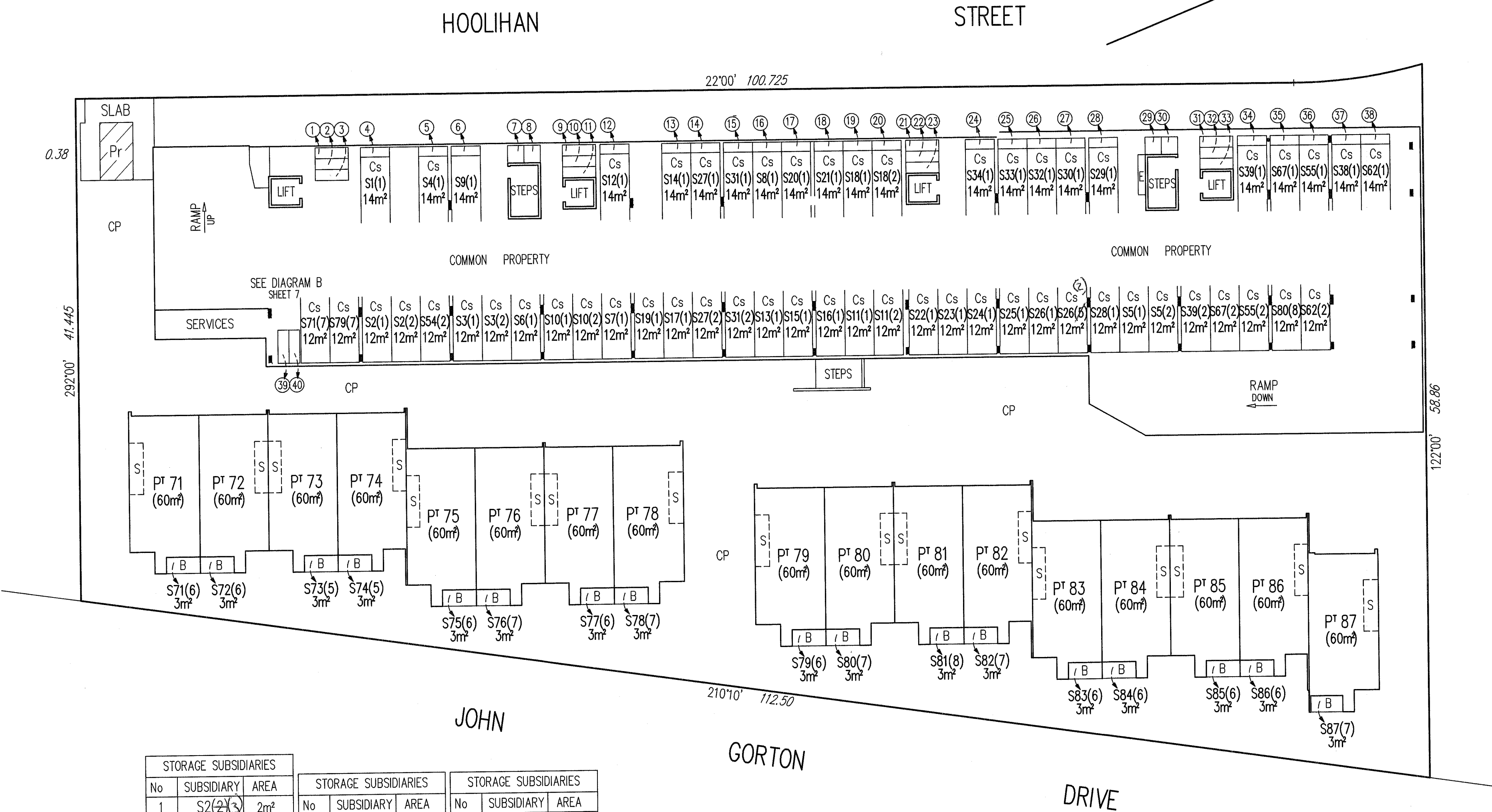
STORAGE SUBSIDIARIES		
No	SUBSIDIARY	AREA
1	S72(3)	1m ²
2	S72(4)	1m ²
3	S74(3)	1m ²
4	S71(3)	1m ²
5	S71(4)	1m ²
6	S76(3)	1m ²
7	S76(4)	1m ²
8	S78(3)	1m ²
9	S78(4)	1m ²
10	S81(4)	1m ²
11	S75(3)	1m ²
12	S77(3)	1m ²
13	S79(3)	2m ²
14	S81(5)	2m ²

STORAGE SUBSIDIARIES		
No	SUBSIDIARY	AREA
15	S83(3)	2m ²
16	S80(3)	1m ²
17	S80(4)	1m ²
18	S82(3)	1m ²
19	S82(4)	1m ²
20	S84(3)	1m ²
21	S85(3)	1m ²
22	S86(3)	1m ²
23	S87(4)	1m ²
24	S87(5)	1m ²
25	S45(2)	2m ²
26	S43(2)	2m ²
27	S49(2)	2m ²

STORAGE SUBSIDIARIES		
No	SUBSIDIARY	AREA
28	S37(2)	2m ²
29	S44(2)	2m ²
30	S54(3)	1m ²
31	S53(2)	1m ²
32	S51(2)	1m ²
33	S46(2)	1m ²
34	S35(2)	1m ²
35	S36(2)	1m ²
36	S57(2)	1m ²
37	S56(2)	2m ²
38	S40(2)	2m ²
39	S50(2)	2m ²

STORAGE SUBSIDIARIES		
No	SUBSIDIARY	AREA
40	S59(2)	1m ²
41	S58(2)	1m ²
42	S48(2)	1m ²
43	S42(2)	1m ²
44	S41(2)	1m ²
45	S69(3)	1m ²
46	S60(3)	1m ²
47	S52(3)	1m ²
48	S73(3)	1m ²





STORAGE SUBSIDIARIES			STORAGE SUBSIDIARIES			STORAGE SUBSIDIARIES		
No	SUBSIDIARY	AREA	No	SUBSIDIARY	AREA	No	SUBSIDIARY	AREA
1	S2(2)(3)	2m²	15	S31(3)	1m²	28	S29(2)	1m²
2	S3(3)	2m²	16	S8(2)	1m²	29	S22(2)	1m²
3	S17(2)	2m²	17	S20(2)	1m²	30	S23(2)	1m²
4	S1(2)	1m²	18	S21(2)	1m²	31	S24(2)	2m²
5	S4(2)	1m²	19	S18(3)	1m²	32	S25(2)	2m²
6	S9(2)	1m²	20	S18(4)	1m²	33	S26(3)	2m²
7	S10(3)	1m²	21	S13(2)	2m²	34	S39(3)	1m²
8	S11(3)	1m²	22	S15(2)	2m²	35	S67(3)	1m²
9	S5(3)	2m²	23	S16(2)	2m²	36	S55(3)	1m²
10	S6(2)	2m²	24	S34(2)	1m²	37	S38(2)	1m²
11	S7(2)	2m²	25	S33(2)	1m²	38	S62(3)	1m²
12	S12(2)	1m²	26	S32(2)	1m²	39	S19(2)	2m²
13	S14(2)	1m²	27	S30(2)	1m²	40	S28(2)	2m²
14	S27(3)	1m²						

LAND TITLES
ACCESS CANBERRA
Chief Minister, Treasury and
Economic Development Directorate
Sheet No. 9 of 26
FLOOR PLAN
Block
4
Section
75
Division
DENMAN PROSPECT
FLOOR NUMBER
FIRST

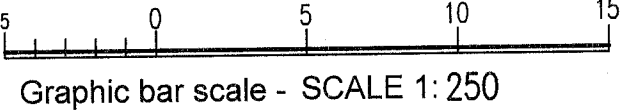
Rebecca Anne McMillan
sole Director / Secretary
Executed by T.J.R. Pty Ltd
ACN 618 153 047
in accordance with Section 127 of the Corporations Act 2001

Ryan Andrew Cappello
Sole Director
Executed by Cappello Development
N.S. G. Pty Ltd ACN 609 263 123
in accordance with Section 127 of the Corporations Act 2001

Signature of Lessee
Lyn Tankey
Delegate of the
ACT Planning and Land Authority

APPROVED UNDER THE UNIT TITLES ACT 2001,
AS THE UNITS PLAN FOR THE SUBDIVISION
OF THE ABOVE MENTIONED PARCEL OF LAND

UNITS PLAN No.
13195



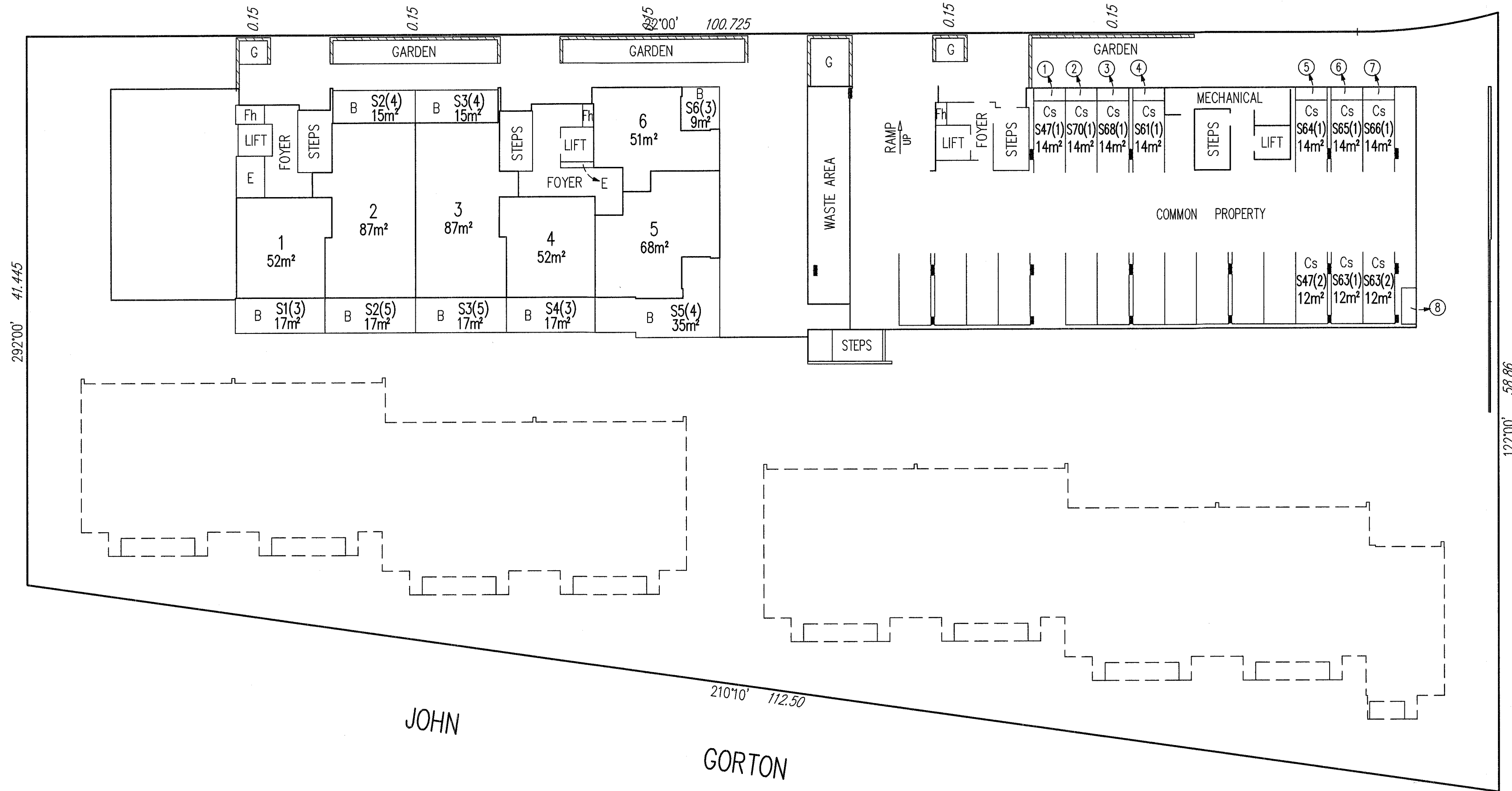
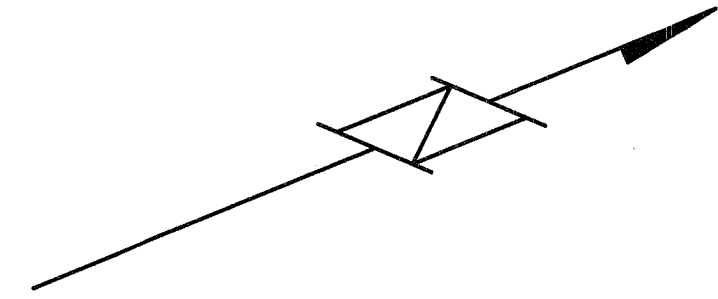
HOOLIHAN

STREET

JOHN

GORTON

DRIVE



STORAGE SUBSIDIARIES		
No	SUBSIDIARY	AREA
1	S47(3)	1m ²
2	S70(2)	1m ²
3	S68(2)	1m ²
4	S61(2)	1m ²
5	S64(2)	1m ²
6	S65(2)	1m ²
7	S66(2)	1m ²
8	S63(3)	3m ²

LAND TITLES

ACCESS CANBERRA

Chief Minister, Treasury and
Economic Development Directorate

Sheet No. 10 of 28

FLOOR PLAN

Block

4

Section

75

Division

DENMAN PROSPECT

FLOOR NUMBER

SECOND

Rebecca Anne McMillan
sole Director/Secretary
TSR2 Pty Ltd
Executed by: ACN 618 153 067
in accordance with Section 127 of the Corporations Act 2001

Ryan Andrew
Cappello - sole
Director
Cappello Developments
No 6 Pty Ltd
Executed by: ACN 618 153 067
in accordance with Section 127 of the Corporations Act 2001

Signature of Lessee

Lyn Tanker

Delegate of the

ACT Planning and Land Authority

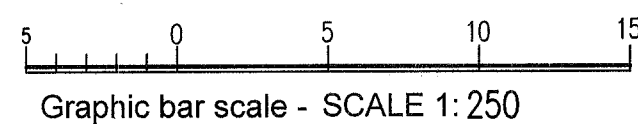
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AS THE UNITS PLAN FOR THE SUBDIVISION
OF THE ABOVE MENTIONED PARCEL OF LAND

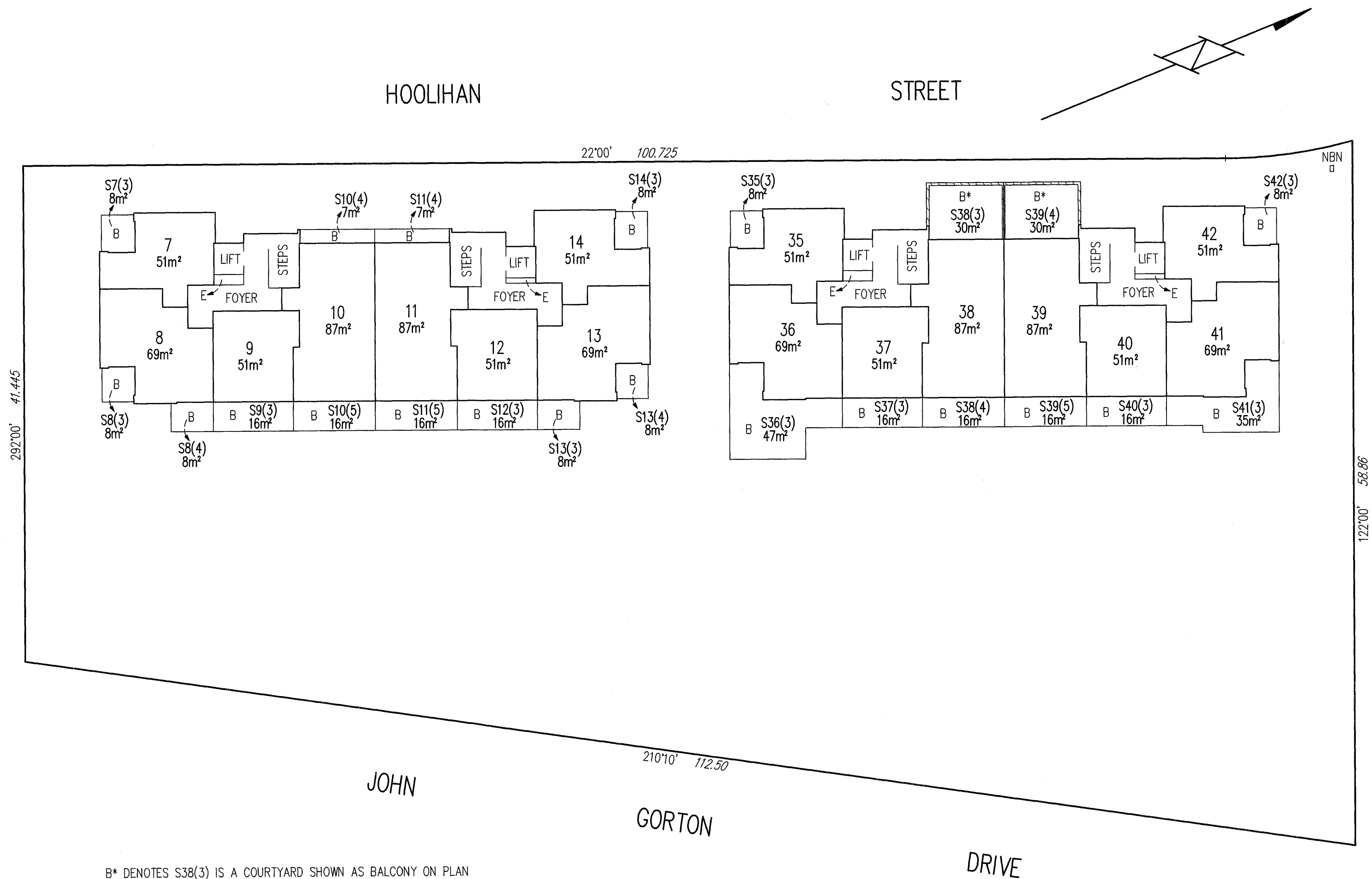
UNITS PLAN No.

13195

Form 3

Form 091 - FP

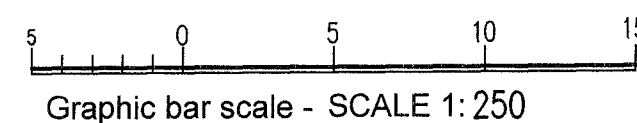




B* DENOTES S38(3) IS A COURTYARD SHOWN AS BALCONY ON PLAN
B* DENOTES S39(4) IS A COURTYARD SHOWN AS BALCONY ON PLAN

Form 3

Form 091 - FP



LAND TITLES
ACCESS CANBERRA
Chief Minister, Treasury and
Economic Development Directorate

Sheet No.11..... of26.....

FLOOR PLAN

Block

4

Section

75

Division

DENMAN PROSPECT

FLOOR NUMBER

THIRD

Rebecca Anne McMillan
sole Director / Secretary
Executed by *TJR 2 Pty Ltd*
ACN 818 153 067
in accordance with Section 127 of the Corporations Act 2001

Ryan Andrew Cappelle
sole Director
Executed by *Cappelle Developments*
No 6 Pty Ltd ACN 609 763 153
in accordance with Section 127 of the Corporations Act 2001

Signature of Lessee

Lyn Tankey
Lyn Tankey

Delegate of the
ACT Planning and Land Authority

APPROVED UNDER THE UNIT TITLES ACT 2001,
AS THE UNITS PLAN FOR THE SUBDIVISION
OF THE ABOVE MENTIONED PARCEL OF LAND

UNITS PLAN No.

13195

FLOOR PLAN

Block

4

Section

75

Division

DENMAN PROSPECT

FLOOR NUMBER

FOURTH

[Signature]

Rebecca Anne McMillan
sole director / secretary

Executed by TSR2 Pty Ltd
ACN 613 153 867
in accordance with Section 127 of the Corporations Act 2001

[Signature]

Ryan Andrew
Cappello sole
director

Executed by Cappello Development
No. 6 Pty Ltd
ACN 609 763 113
in accordance with Section 127 of the Corporations Act 2001

Signature of Lessee

[Signature]

Lyn Tankey

Delegate of the
ACT Planning and Land Authority

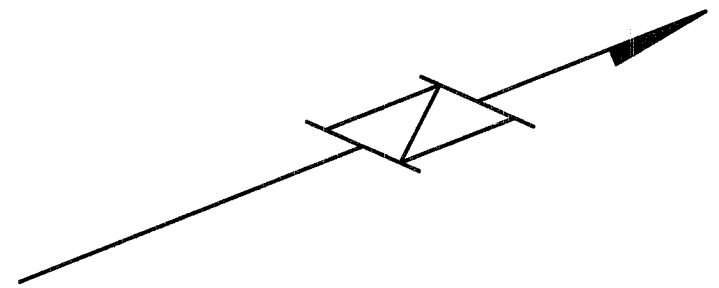
APPROVED UNDER THE UNIT TITLES ACT 2001,
AS THE UNITS PLAN FOR THE SUBDIVISION
OF THE ABOVE MENTIONED PARCEL OF LAND

UNITS PLAN No.

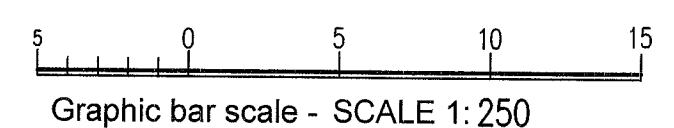
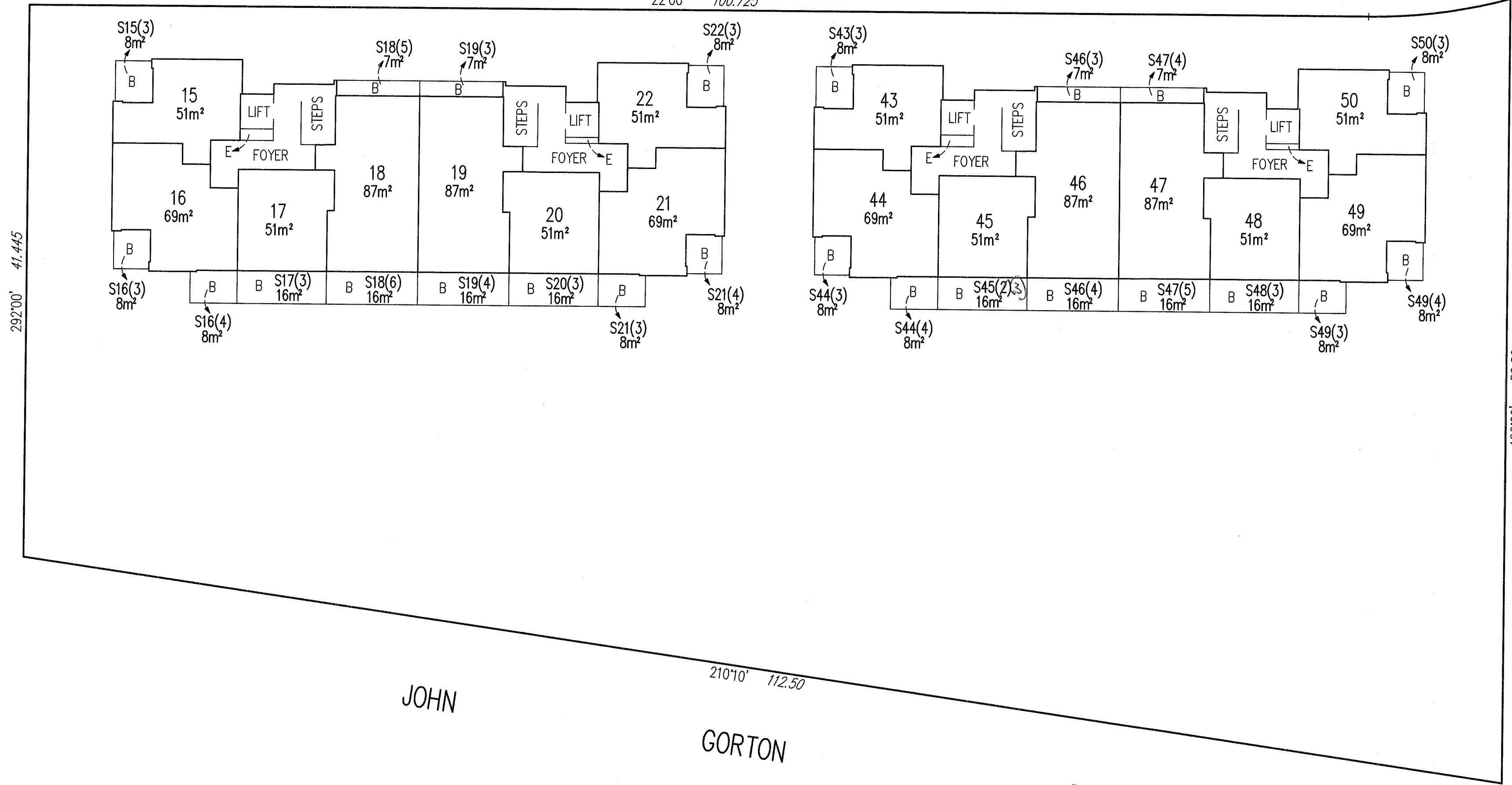
13195

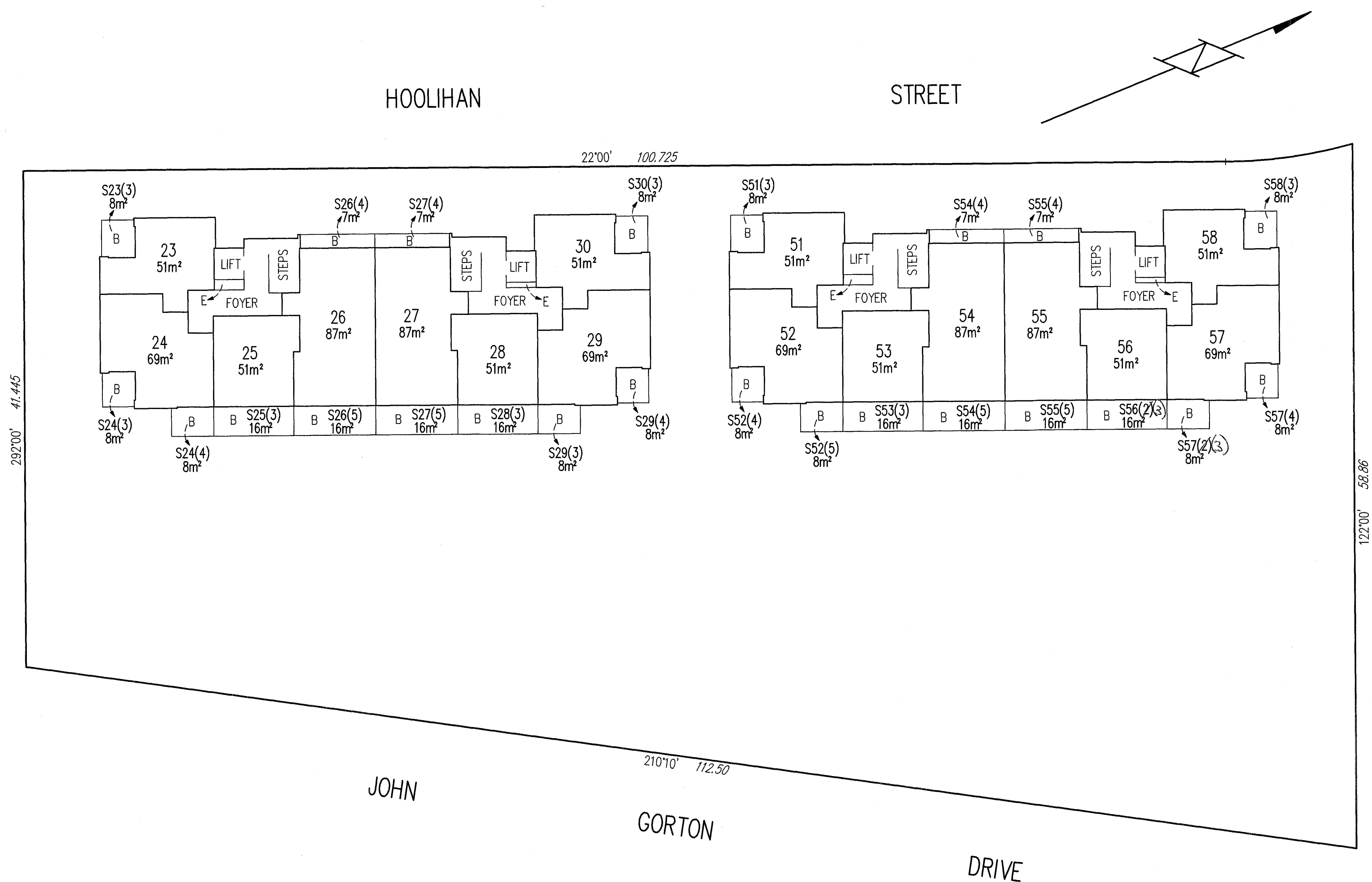
HOOLIHAN

STREET



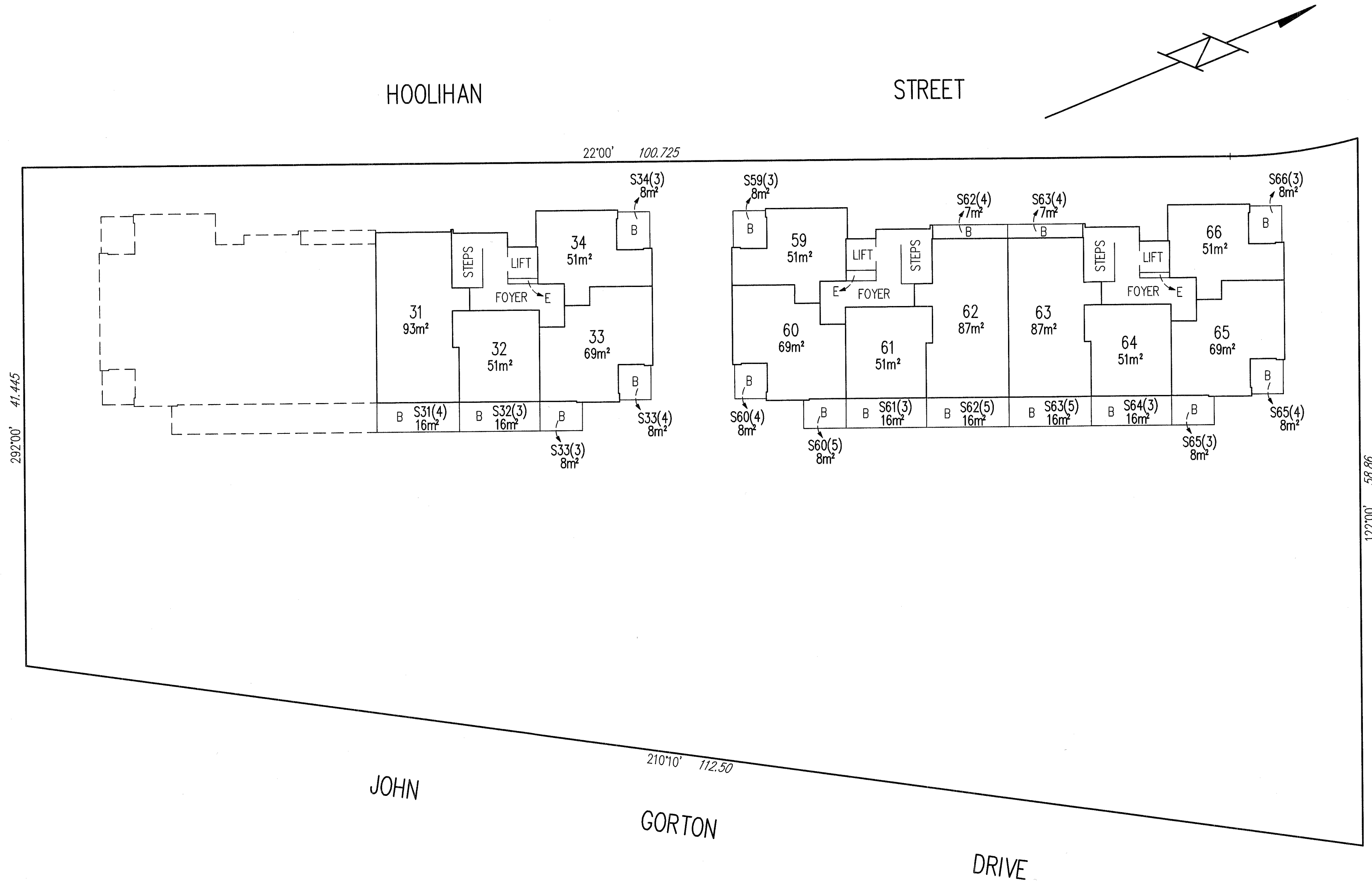
22'00" 100.725





LAND TITLES ACCESS CANBERRA Chief Minister, Treasury and Economic Development Directorate
Sheet No.13.....of ...26.....
FLOOR PLAN
Block 4
Section 75
Division DENMAN PROSPECT
FLOOR NUMBER FIFTH
Executed by <i>Rebecca McMillan</i> Sale Director (Secretary)
SR2 Pty Ltd ACN 618 153 067 in accordance with Section 127 of the Corporations Act 2001
<i>R. G.</i> Ryan Andrew Cappello Sale Director Cappello Developments ACN 619 763 153 in accordance with Section 127 of the Corporations Act 2001
Signature of Lessee <i>V. Vally</i> Lyn Tanky Delegate of the ACT Planning and Land Authority
APPROVED UNDER THE UNIT TITLES ACT 2001, AS THE UNITS PLAN FOR THE SUBDIVISION OF THE ABOVE MENTIONED PARCEL OF LAND
UNITS PLAN No. 13195

LAND TITLES ACCESS CANBERRA Chief Minister, Treasury and Economic Development Directorate	
Sheet No. 14 of 26	
FLOOR PLAN	
Block 4	
Section 75	
Division DENMAN PROSPECT	
FLOOR NUMBER SIXTH	
Executed by <i>Rebecca Anne McMillan</i> sole director / secretary TSP2 Pty Ltd ACN 618 153 067 in accordance with Section 127 of the Corporations Act 2001	
Executed by <i>Ryan Andrew Cappello</i> sole Director Cappello Development No. 6 Pty Ltd ACN 609 763 183 in accordance with Section 127 of the Corporations Act 2001	
Signature of Lessee <i>Lyn Tankey</i> Lyn Tankey Delegate of the ACT Planning and Land Authority	
APPROVED UNDER THE UNIT TITLES ACT 2001, AS THE UNITS PLAN FOR THE SUBDIVISION OF THE ABOVE MENTIONED PARCEL OF LAND	





LAND TITLES
ACCESS CANBERRA
Chief Minister, Treasury and Economic Development Directorate
Sheet No.15.....of26.....
FLOOR PLAN
Block 4
Section 75
Division DENMAN PROSPECT
FLOOR NUMBER SEVENTH
Executed by <i>Rebecca Anne McMillan</i> Sole Director / Secretary TSR2 Pty Ltd ACN 618.153.007 In accordance with Section 127 of the Corporations Act 2001
Executed by <i>Ryan Andrew Cappello</i> Sole Director Cappello Developments No 6 Pty Ltd ACN In accordance with Section 127 of the Corporations Act 2001
Signature of Lessee <i>Lyn Tankey</i> Lyn Tankey Delegate of the ACT Planning and Land Authority
APPROVED UNDER THE UNIT TITLES ACT 2001, AS THE UNITS PLAN FOR THE SUBDIVISION OF THE ABOVE MENTIONED PARCEL OF LAND

FORM 4

Land Titles (Unit Titles) Act 1970

UNITS PLAN NO: 13195

Block 4 Section 75 Division of DENMAN PROSPECT

SCHEDULE OF PROVISIONS COVENANTS AND CONDITIONS SUBJECT TO WHICH LEASES OF UNITS ARE HELD

1. The term of the lease of each of the units expires on the seventh day of November Two thousand one hundred and seventeen.
2. The rent reserved by and payable under the lease of each of the units is five cents per annum if and when demanded.
3. Each Lessee of each of the Units Nos. 1 – 87 inclusive covenants with the Planning and Land Authority ("the Authority") on behalf of the Commonwealth of Australia ("the Commonwealth") in respect of each Lessee's relevant unit as follows:
 - (a) to pay to the Authority at Canberra the rent hereinbefore reserved and any other moneys payable under the lease within one month of the date of any demand made by the Authority relating thereto and served on the Lessee;
 - (b) to use the unit as a single dwelling only;
 - (c) not to use any unit subsidiary to that unit as a habitation;
 - (d) not to make any structural alterations to the unit without the previous approval in writing of the Authority, except where exempt by law;
 - (e) that the Lessee shall not without the prior written consent of the Authority install or use a solid fuel heating system on the premises;
 - (f) at all times during the term of the lease to maintain repair and keep in repair to the satisfaction of the Authority the unit excluding any defined parts under the provisions of the Unit Titles Act 2001;

Executed by Rebecca Anne McMillan
Sole Director/Secretary TJR Pty Ltd
ACN 618 153 061
In accordance with Section 127 of the Corporations Act 2001

Executed by Ryan Andrew Cappello - Sole Director / Secretary
Cappello Developments
No 6 Pty Ltd ACN 609 763 153
In accordance with Section 127 of the Corporations Act 2001

- (g) if and whenever the Lessee fails to maintain repair or keep in repair the unit the Authority may by notice in writing to the Lessee specifying the wants of repairs require the Lessee to effect repairs in accordance with the said notice or if the Authority is of the opinion that a building part of a building or other improvement is beyond reasonable repair the Authority may require the Lessee to remove a building or part of a building or other improvement and if after the expiration of one month from the date of receipt of the said notice or such longer time as the Authority may in writing allow the Lessee has not effected the said repairs or removed the said building part of the building or other improvement any person or persons duly authorised by the Authority with such equipment as is necessary may enter the unit and effect the said repairs or demolish and remove the building part of the building or other improvement and all expenses incurred by the Authority in effecting such repairs or demolition and removal shall be paid by the Lessee to the Authority on demand and from the date of such demand until paid shall for all purposes of this lease be a debt due and payable to the Authority by the Lessee;
- (h) to permit any person or persons authorised by the Authority to enter the unit at all reasonable times and in any reasonable manner and inspect the unit;
- (i) to pay to the Authority or any statutory authority the proportion that is equal to the proportion the unit entitlement bears to the aggregate unit entitlement of all the units of any amounts payable by the Owners Corporation to the Authority or a statutory authority (but which has not been paid by the Owners Corporation within the required time under the provisions of any law of the Territory applicable to the unit or common property) and without limiting the generality thereof under the provisions of the Planning and Development Act 2007 and the Unit Titles Act 2001;
- (j) that the Lessee shall screen and keep screened all service areas to the satisfaction of the Authority and shall ensure that all plant and machinery contained within the premises is suitably screened from public view;
- (k) that the Lessee shall not, without the previous consent in writing of the Territory, remove any tree:
- (i) that has been identified in a development approval for retention during the period allowed for construction of the building; or
- (ii) to which the Tree Protection Act 2005, applies;

Executed by TJD2 Pty Ltd ACN 618 153 067

Rebecca Anne McMillan
in accordance with Section 127 of the Corporations Act 2001

Sole Director / Secretary

Ryan Andrew Cappello - Sole Director / Secretary

Executed by Cappello Developments No 6 Pty Ltd

ACN 609 763 153

in accordance with Section 127 of the Corporations Act 2001

- (l) all minerals on or in the unit and the right to the use, flow and control of ground water under the surface of the unit are reserved to the Territory.

4. It is mutually covenanted and agreed by the Commonwealth and each of the Lessees of all the units as follows:

- (a) the Lessee paying the rent and all other money due and observing and performing the covenants and stipulations on the part of the Lessee to be observed and performed shall quietly enjoy the unit without interruption by the Authority or any person lawfully claiming from or under or in trust for the Authority;

(b) that if:

- (i) any rent or other moneys payable under this lease shall remain unpaid for three months next after the date appointed for payment thereof (whether such rent or other moneys shall have been formally demanded or not); or
- (ii) the said unit is at any time not used for a period of one year for the purpose for which this lease is granted; or
- (iii) the Lessee shall commit or suffer a breach of any other covenant contained or implied in this lease;

the Authority on behalf of the Commonwealth may terminate this lease but without prejudice to any claim which the Authority or the Commonwealth may have against the Lessee in respect of any breach of the covenants on the part of the Lessee to be observed or performed;

- (c) that acceptance of rent or other moneys by the Authority during or after any period referred to in Clauses 4(b)(i), (ii) or (iii) of this lease shall not prevent or impede the exercise by the Authority of the powers conferred upon it by the said Clauses;
- (d) that any extension of the term of all the leases shall be in accordance with the provisions of the Planning and Development Act 2007;
- (e) any notice requirement demand consent or other communication to be given to or served upon the Lessee under this lease shall be deemed to have been duly given or served if signed by or on behalf of the Authority and delivered to or sent in a prepaid letter addressed to the Lessee at the unit or at its registered office or at the usual or last-known address of the Lessee or affixed in a conspicuous position on the unit;

Executed by TJ R2 Pty Ltd ACN 618 153 067
Rebecca Anne McMillan
in accordance with Section 127 of the Corporations Act 2001
Sole Director / Secretary

Executed by Ryan Andrew Cappello ACN 609 763 153
Secretary
in accordance with Section 127 of the Corporations Act 2001

- (f) any and every right power or remedy conferred on the Commonwealth or Territory in this lease, by law or implied by law may be exercised on behalf of the Commonwealth or the Territory as the case may be by:
- (i) the Authority;
 - (ii) an authority or person for the time being authorised by the Authority or by law to exercise those powers or functions of the Commonwealth or the Territory; or
 - (iii) an authority or person to whom the Authority has delegated all its powers or functions under the Planning and Development Act 2007.

5. In this schedule unless the contrary intention appears:

- (a) "Authority" means the Planning and Land Authority established by section 10 of the Planning and Development Act 2007;
- (b) "building" means any building or structure constructed or partially constructed or to be constructed, as the context permits or requires, on or under the parcel of land;
- (c) "class" for a building or structure, means the class of building or structure under the building code as defined in the Building Act 2004;
- (d) "dual occupancy housing" means the use of the parcel of land that was originally used or leased for the purposes of single dwelling housing for two dwellings;
- (e) "dwelling":
 - (i) means a class 1 building, or a self-contained part of a class 2 building, that:
 - (A) includes the following that are accessible from within the building, or the self-contained part of the building:
 - (1) not more than 2 kitchens;
 - (2) at least 1 bath or shower;
 - (3) at least 1 toilet pan; and
 - (B) does not have access from another building that is either a class 1 building or the self-contained part of a class 2 building; and

Executed by TJR 2 Pty Ltd
ACN 618 153 067
In accordance with Section 127 of the Corporations Act 2001

Rebecca Anne McMillan
Sale Director / Secretary

Ryan Andrew Cappello - Sale Director / Secretary
Executed by Cappello Developments No 6
Pty Ltd ACN 609 763 153
In accordance with Section 127 of the Corporations Act 2001

- (ii) includes any ancillary parts of the building and any class 10a buildings associated with the building;
- (f) "Lessee" shall:
 - (i) where the Lessee consists of one person be deemed to include the Lessee and the executors administrators and assigns of the Lessee;
 - (ii) where the Lessee consists of two or more persons be deemed to include in the case of a tenancy in common the said persons and each of them and their and each of their executors administrators and assigns and in the case of a joint tenancy be deemed to include the said persons and each of them and their and each of their assigns and the executors administrators and assigns of the survivor of them; and
 - (iii) where the Lessee is a corporation be deemed to include such corporation and its successors and assigns;
- (g) "multi-unit housing" means the use of the parcel of land for more than one dwelling and includes but is not limited to dual occupancy housing;
- (h) "premises" means the parcel of land and any building or other improvements on the parcel of land;
- (i) "Territory" means:
 - (i) when used in a geographical sense the Australian Capital Territory; and
 - (ii) when used in any other sense the body politic established by Section 7 of the Australian Capital Territory (Self-Government) Act 1988 (C'th);
- (j) "unit" means the parcel of land and the building and other improvements including any unit subsidiaries constructed or to be constructed on a part of the relevant parcel of land shown on the Units Plan as a unit;
- (k) "unit subsidiaries" has the same meaning as in the Unit Titles Act 2001;
- (l) words in the singular include the plural and vice versa;
- (m) words importing one gender include the other genders;

Executed by TJR2 Pty Ltd

ACN 618 153 667

In accordance with Section 127 of the Corporations Act 2001

Rebecca Anne McMillan

Sole Director/Secretary

Executed by Cappello developments No 6

Pty Ltd ACN 609 763 153

In accordance with Section 127 of the Corporations Act 2001

Ryan Andrew Cappello Sole Director/Secretary

- (n) a reference in this lease to any statute or statutory provision shall include a reference to any statute or statutory provision that amends, extends, consolidates or replaces the statute or statutory provision and to any other regulation, instrument or other subordinate legislation made under the statute.

DATED the Twenty fifth day of November 2020.

Lyn Tankey

Lyn Tankey
a delegate of the Planning and Land
Authority in exercising its functions

LESSEE: **CAPPELLO DEVELOPMENTS NO 6 PTY LTD ACN 609 763 153**

TJR2 PTY LTD ACN 618 153 067

[Signature]

Executed by TJR2 Pty Ltd
ACN 618 153 067

In accordance with Section 127 of the Corporations Act 2001

Rebecca Anne McMillan
Sole Director / Secretary

Executed by Cappello Developments
No 6 Pty Ltd ACN 609 763 153

In accordance with Section 127 of the Corporations Act 2001

Ryan Andrew Cappello
Sole Director / Secretary

FORM 5

Land Titles (Unit Titles) Act 1970

UNITS PLAN NO: 13195

Block 4 Section 75 Division of DENMAN PROSPECT

**SCHEDULE OF PROVISIONS COVENANTS AND CONDITIONS SUBJECT TO
WHICH THE LEASE OF THE COMMON PROPERTY IS HELD**

1. The term of the lease expires on the seventh day of November Two thousand one hundred and seventeen.
2. The rent reserved by and payable under the lease is five cents per annum if and when demanded.
3. The Owners – Units Plan No. 13195 ("the Owners Corporation") covenants with the Planning and Land Authority ("the Authority") on behalf of the Commonwealth of Australia ("the Commonwealth") as follows:
 - (a) to pay to the Authority at Canberra the rent hereinbefore reserved and any other moneys payable under the lease within one month of the date of any demand made by the Authority relating thereto and served on the Owners Corporation;
 - (b) to use the common property for some or all of the following uses; carparking, landscaping, paving, lighting, storage areas, service areas, vehicular and pedestrian access and for any other use approved by the Owners Corporation **PROVIDED THAT** these uses are consistent with the permitted purposes of the units;
 - (c) not to erect any building or make any structural alterations in any building or part of a building or other improvements on the common property without the previous approval in writing of the Authority, except where exempt by law;
 - (d) that the Owners Corporation shall not without the prior written consent of the Authority install or use a solid fuel heating system on the premises;

Executed by TJR2 Pty Ltd
ACN 618 153 667
in accordance with Section 127 of the Corporations Act 2001

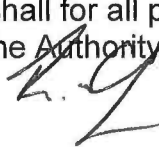
Rebecca Anne McMillan
Sole Director / Secretary

Executed by Coppello Developments
No 6 Pty Ltd ACN 609 763 153
in accordance with Section 127 of the Corporations Act 2001

Ryan Andrew Coppello
Sole Director / Secretary

- (e) at all times during the term of the lease to maintain repair and keep in repair to the satisfaction of the Authority all buildings parts of buildings landscaping storage areas covered carparking hardstanding carparking adequately illuminated vehicle access roads pedestrian pathways and vehicle access drives and all other improvements on the common property and without limiting the generality thereof to maintain repair and keep in good working order the services situated in or on the parcel of land forming the common property;
- (f) except where necessary for compliance with Clause 3(e) of this clause not to install any services or make any alterations in any of the services or any part of the services situated in or on the parcel of land forming the common property without the previous approval in writing of the Authority;
- (g) if and whenever the Owners Corporation fails to maintain repair or keep in repair any building part of a building landscaping storage areas covered carparking hardstanding carparking adequately illuminated vehicle access roads pedestrian pathways and vehicle access drives or other improvements on the common property or to repair or keep in good working order the services or any parts thereof situated in or on the parcel of land forming the common property the Authority may by notice in writing to the Owners Corporation specifying the wants of repairs require the Owners Corporation to effect repairs in accordance with the said notice or if the Authority is of the opinion that a building part of a building or other improvement or any part or parts of the services are beyond reasonable repair the Authority may require the Owners Corporation to remove a building part of a building or improvement or to replace the part or parts of the services if after the expiration of one month from the date of receipt of the said notice or such longer time as the Authority may in writing allow the Owners Corporation has not effected the said repairs or removed the said building part of the building or the improvement or replaced the part or parts of the services any person or persons duly authorised by the Authority with such equipment as is necessary may enter the common property and effect the said repairs or demolish and remove the building part of the building or the improvement or replace the part or parts of the service and all expenses incurred by the Authority in effecting such repairs or demolition or removal or replacement shall be paid by the Owners Corporation to the Authority on demand and from the date of such demand until paid shall for all purposes of this lease be a debt due and payable to the Authority by the Owners Corporation;





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 In accordance with Section 127 of the Corporations Act 2001
 Ryan Andrew Cappello
 Sole Director / Secretary

- (h) to permit any person or persons authorised by the Authority to enter upon the common property at all reasonable times and in any reasonable manner and inspect the common property and buildings parts of buildings services parts of services and improvements situated in or on the parcel of land forming the common property;
- (i) that the Owners Corporation shall screen and keep screened all service areas to the satisfaction of the Authority and shall ensure that all plant and machinery contained within the premises is suitably screened from public view;
- (j) that the Owners Corporation shall not, without the previous consent in writing of the Territory, remove any tree:
 - (i) that has been identified in a development approval for retention during the period allowed for construction of the building; or
 - (ii) to which the Tree Protection Act 2005, applies;
- (k) all minerals on or in the common property and the right to the use, flow and control of ground water under the surface of the common property are reserved to the Territory.

4. It is mutually covenanted and agreed by the Commonwealth and the Owners Corporation as follows:

- (a) that if the common property is at any time not used for a period of one year for the purpose for which this lease is granted the Authority on behalf of the Commonwealth may terminate this lease but without prejudice to any claim which the Authority or the Commonwealth may have against the Owners Corporation in respect of any breach of the covenants on the part of the Owners Corporation to be observed or performed;
- (b) that any extension of the term of all the leases shall be in accordance with the provisions of the Planning and Development Act 2007;
- (c) any and every right power or remedy conferred on the Commonwealth or Territory in this lease, by law or implied by law may be exercised on behalf of the Commonwealth or the Territory as the case may be by:
 - (i) the Authority;
 - (ii) an authority or person for the time being authorised by the Authority or by law to exercise those powers or functions of the Commonwealth or Territory; or


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- (iii) an authority or person to whom the Authority has delegated all its powers or functions under the Planning and Development Act 2007.

5. In this schedule unless the contrary intention appears:

- (a) "Authority" means the Planning and Land Authority established by section 10 of the Planning and Development Act 2007;
- (b) "building" means any building or structure constructed or partially constructed or to be constructed, as the context permits or requires, on or under the parcel of land;
- (c) "owners corporation" means the body corporate under the name of 'The Owners – Units Plan No. 13195';
- (d) "premises" means the parcel of land and any building or other improvements on the parcel of land;
- (e) "services" means hydraulic mains stormwater drains sewer lines hydraulic fire mains and hydrants together with all necessary appurtenances;
- (f) "Territory" means:
- (i) when used in a geographical sense the Australian Capital Territory; and
- (ii) when used in any other sense the body politic established by Section 7 of the Australian Capital Territory (Self-Government) Act 1988 (C'th);
- (g) "unit" means the parcel of land and the building and other improvements constructed or to be constructed on a part of the relevant parcel of land shown on the Units Plan as a unit;
- (h) words in the singular include the plural and vice versa;
- (i) words importing one gender include the other genders;


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- (j) a reference in this lease to any statute or statutory provision shall include a reference to any statute or statutory provision that amends, extends, consolidates or replaces the statute or statutory provision and to any other regulation, instrument or other subordinate legislation made under the statute.

DATED the.....Twenty-fifth..... day of.....November..... 2020.



Lyn Tankey

a delegate of the Planning and Land
Authority in exercising its functions

LESSEE: CAPPELLO DEVELOPMENTS NO 6 PTY LTD ACN 609 763 153

TJR2 PTY LTD ACN 618 153 067

~~REBECCA ANNE Mc MILLAN~~

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